

25STCV38213 25STCV38213

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-30

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Case Number: 25STCV38213 Hearing Date: July 30, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:05 PM on July 29, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 29, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

If all parties submit on the tentative, no appearance will be necessary, as the Court will adopt the tentative and set a status conference as noted below.

Plaintiff alleges that Defendant

failed to fully fund a construction loan borrowed by Plaintiff. In a lawsuit

between the parties, the case proceeded as a reference proceeding, which resulted in a ruling against lender Cathay Bank and in favor of borrower Crossroads Action.

Crossroads

seeks to sell the property but requests cancellation of the promissory note based upon the running of the statute of limitations, and return the of the monies paid under the Holdback Agreement with Cathay Bank and Agreement following the sale of the Property.

Defendant Cathay Bank moves for a stay of this action pending determination of Crossroads Greenville Properties LTD, et al. v. Cathay Bank, Court of Appeal Case No. B348425 and the underlying Los Angeles Superior Court Case No. BC610411.

TENTATIVE RULING

Defendant Cathay Bank's motion for a stay of this action pending determination of Crossroads Greenville Properties LTD, et al. v. Cathay Bank, Court of Appeal Case No. B348425 and the underlying Los Angeles Superior Court Case No. BC610411 is GRANTED in the exercise of this Court's discretion.

The Court sets a status conference re: appeal for December 7, 2026 at 8:30 a.m. Status conference briefs are due 7 days prior.

ANALYSIS

Motion To Stay

Request For
Judicial Notice

Defendant requests that the Court take judicial notice of the following:

1.

Complaint filed in Crossroads Greenville Properties v. Cathay Bank, Los Angeles Superior Court Case No. BC610411.

2.

Cross-Complaint filed in Crossroads Greenville Properties v. Cathay Bank, Los Angeles Superior Court Case No. BC610411.

3.

Statement of Decision filed in Crossroads Greenville Properties v. Cathay Bank, Los Angeles Superior Court Case No. BC610411.

4.

Docket in Crossroads Greenville Properties v. Cathay Bank, Los Angeles Superior Court Case No. BC610411.

5.

Opening Brief filed in Crossroads Greenville Properties et al. v. Cathay Bank, California Second District Court of Appeal Case No. B348425.

6.

Docket in Crossroads Greenville Properties et al. v. Cathay Bank, California Second District Court of Appeal Case No. B348425.

Requests Nos. 1 – 6 are GRANTED per Evid.

Code § 452(d)(court records).

Discussion

Defendant Cathay Bank moves for an order staying the instant case pending the disposition of the appeal in Crossroads Greenville Properties

LTD, et al. v. Cathay Bank, Court of Appeal Case No. B348425 and the underlying

Los Angeles Superior Court Case No. BC610411.

“Trial courts

generally have the inherent power to stay proceedings in the interests of

justice and to promote judicial efficiency. (Citations omitted.) “(Freiberg v. City of Mission Viejo

(1995) 33 Cal.App.4th 1484, 1489.) “The

granting or denying of [a] . . . stay necessarily requires a court to exercise its equitable discretion.” (Webster v.

Superior Court (1988) 46 Cal.3d 338,

345.)

“[T]he general rule [is] that trial

courts have inherent power to stay trials awaiting final appellate resolution of related actions that might conclusively determine all or some of the issues in the stayed action." (Koch-Ash v. Superior Court (1986) 180 Cal.App.3d 689, 696.)

By this proceeding they seek to stay a trial of the action until the issue raised on their appeal is determined. On the record now before us it would seem that a very substantial question is presented by the appeal, and that the case ought not to be tried until that question is decided. The possibility that the case might have to be tried twice, in the event of a reversal, should be avoided.

(Molybdenum Corp. of America v. Wright (1956) 143 Cal.App.2d 288, 289.)

The Court agrees with Defendant Cathay Bank that a stay pending the appeal in Crossroads Greenville Properties LTD, et al. v. Cathay Bank, Court of Appeal Case No. B348425 and the underlying Los Angeles Superior Court Case No. BC610411 is appropriate. If the Court of Appeal reverses the Referee's judgment in favor of Crossroads against Cathay Bank, including as to the Cross-Claim for breach of the promissory note, then the basis for cancellation in this action may no longer exist.

As such, the motion to stay is GRANTED in the exercise of this Court's discretion. The Court sets a status conference re: appeal for December 7, 2026 at 8:30 a.m. Status conference briefs are due 7 days prior.